PUBLIC INTERNATIONAL LAW

Quiz — Questions

Question 1. Article 38(1) of the Statute of the International Court of Justice (ICJ Statute) lists the sources of international law that the Court may apply. Which of the following pairings correctly identifies the PRIMARY sources as opposed to the SECONDARY sources listed in that provision?

A) Primary: treaties and judicial decisions; Secondary: customary international law and scholarly writings.

B) Primary: treaties, customary international law, and general principles of law; Secondary: judicial decisions and scholarly writings.

C) Primary: judicial decisions and general principles of law; Secondary: treaties and customary international law.

D) Primary: treaties and customary international law; Secondary: UN General Assembly resolutions and jus cogens

---

Question 2. Explain the TWO constitutive elements required to establish the existence of a rule of customary international law (CIL).

Question 3. Which of the following statements best describes the legal status of a jus cogens (peremptory) norm under international law?

A) It is a treaty obligation that is binding only on state parties that have ratified the relevant instrument.

B) It is a norm accepted and recognised by the international community of states as one from which no derogation is permitted and which can be modified only by a subsequent norm of the same character.

C) It is a soft-law standard that states are encouraged but not required to follow.

D) It is a rule applicable exclusively during times of armed conflict and has no effect in peacetime.

Question 4. Under the VCLT, the principle of pacta sunt servanda means that:

A) Every treaty in force is binding upon the parties to it and must be performed by them in good faith.

B) States are free to denounce treaties whenever their domestic interests require.

C) A state may suspend treaty performance if a subsequent treaty conflicts with it.

D) Only multilateral treaties create binding obligations; bilateral treaties are merely recommendatory.

Question 5. Explain the difference between the declaratory theory and the constitutive theory of state recognition in international law. Which approach is more consistent with contemporary international law, and why? In your answer, refer to at least one example of contested statehood to illustrate the practical significance of this debate.

Question 6. Article 27 of the VCLT addresses the relationship between domestic law and international treaty obligations. Which of the following statements best reflects the rule established by that provision?

A) A state may invoke provisions of its internal law to justify its failure to perform a treaty only if its parliament has not ratified that treaty.

B) A state may suspend treaty performance if its domestic courts have declared the treaty unconstitutional.

C) A state may invoke domestic constitutional law to justify non-performance of a treaty if the violation is not manifest.

D) A party may not invoke the provisions of its internal law as justification for its failure to perform a treaty.

Question 7. International law recognises several grounds upon which a state may assert prescriptive jurisdiction over conduct occurring outside its territory. Identify and briefly explain THREE such grounds.

Question 8. In the context of state immunity under international law, which of the following correctly distinguishes between acta jure imperii and acta jure gestionis?

A) Acta jure imperii are commercial acts to which restricted immunity applies; acta jure gestionis are sovereign acts that enjoy absolute immunity.

B) Acta jure imperii are sovereign or governmental acts that generally enjoy immunity from foreign court jurisdiction; acta jure gestionis are commercial acts that generally do not attract immunity.

C) Both categories enjoy absolute immunity under the UN Convention on Jurisdictional Immunities of States and their Property (2004).

D) The distinction between acta jure imperii and acta jure gestionis was abolished by customary international law following the Trendex case before the English Court of Appeal in 1977.

Question 9. Explain the distinction between personal immunity (ratione personae) and functional immunity (ratione materiae) for state officials in international law.

Question 10. Under the ILC Articles on Responsibility of States for Internationally Wrongful Acts (ARSIWA, 2001), an internationally wrongful act consists of two cumulative elements. Which of the following correctly identifies those two elements?

A) Conduct attributable to the state under international law, and conduct that constitutes a breach of an international obligation of that state.

B) Malicious intent on the part of the state and a breach of a treaty obligation.

C) A violation of a jus cogens norm and tangible damage suffered by another state.

D) A domestic court finding of unlawfulness and the state's failure to provide adequate reparation.

Question 11. In the Corfu Channel Case (ICJ, 1949), the International Court of Justice found Albania internationally responsible even though Albania had not itself laid the mines that caused the loss of British warships and sailors. Identify and explain the principle of state responsibility illustrated by this case.

Question 12. Explain the legal significance of the 'existence of a dispute' in the context of the International Court of Justice's jurisdiction.

Question 13. In the Mavrommatis Palestine Concessions Case (PCIJ, 1924), the Permanent Court of International Justice defined a legal dispute as:

A) Any political disagreement between two or more states concerning matters of mutual concern.

B) A disagreement on a point of law or fact, a conflict of legal views or of interests between two persons.

C) A situation in which one state formally protests the conduct of another state through diplomatic channels.

D) Any failure by a state to comply with a binding resolution of the UN Security Council.

Question 14. Under international law, which of the following best characterises states' obligations regarding the settlement of international disputes under Article 2(3) of the UN Charter?

A) States are obligated to refer all disputes to the International Court of Justice for binding adjudication.

B) States are obligated both to settle their disputes and to do so exclusively through adjudicatory means under Art. 2(3) UN Charter.

C) States are obligated to settle their international disputes by peaceful means; however, international law does not generally impose an obligation to settle all disputes.

D) States have no legal obligation regarding the settlement of disputes; settlement is entirely discretionary.

Question 15. Article 2(4) of the UN Charter prohibits 'the threat or use of force against the territorial integrity or political independence of any state.' In the Advisory Opinion on the Legality of the Threat or Use of Nuclear Weapons (ICJ, 1996), the Court clarified the meaning of a 'threat'. Which of the following best reflects that clarification?

A) If a threatened use of force would itself be unlawful, then the stated readiness to use such force is also prohibited as a threat under Article 2(4).

B) A threat is unlawful under Article 2(4) only if it is accompanied by a specific ultimatum demanding territorial concessions.

C) The prohibition on threats of force applies only to nuclear-armed states.

Question 16. In the Nicaragua Case (Military and Paramilitary Activities in and against Nicaragua, ICJ 1986), the International Court of Justice affirmed which of the following propositions regarding the prohibition on the use of force?

A) The prohibition on the use of force is binding exclusively on UN Member States through the UN Charter and does not form part of customary international law.

B) The prohibition on the use of force may be displaced by regional collective security arrangements between states.

C) The use of force is regulated both by customary international law and by treaty law, in particular the UN Charter.

D) Indirect use of force (such as arming and training non-state actors) is expressly authorised under Article 51 of the UN Charter.

Question 17. Distinguish between the UN Security Council's non-forcible measures under Article 41 and forcible measures under Article 42 of the UN Charter.

Question 18. Which of the following is NOT one of the four core international crimes within the subject-matter jurisdiction of the International Criminal Court (ICC) under the Rome Statute (1998)?

A) Genocide.

B) Crimes against humanity.

C) Terrorism.

D) War crimes.

Question 19. Under the Rome Statute, the International Criminal Court (ICC) operates on the principle of 'complementarity.' Which of the following best describes this principle?

A) The ICC has primary jurisdiction over all core international crimes and may override national courts at any time.

B) The ICC may only exercise jurisdiction when the state with primary jurisdiction over the crime is unwilling or genuinely unable to carry out an investigation or prosecution.

C) The ICC and national courts share concurrent and equal jurisdiction over core international crimes in all circumstances.

D) The ICC can only exercise jurisdiction over cases referred by the UN Security Council acting under Chapter VII of the UN Charter.

Question 20. Under Article 51 of the UN Charter, the right of self-defence may only be exercised in response to an 'armed attack.' In the Nicaragua Case (ICJ, 1986), the Court drew a significant distinction regarding the meaning of 'armed attack.' Which of the following best reflects that distinction and its legal consequence for the right of self-defence?

A) The Court distinguished between the 'most grave forms of the use of force' constituting an armed attack and 'less grave forms' (such as frontier incidents or the supply of arms and funds to armed groups), concluding that only the former triggers the right of self-defence.

B) Any use of force by a state qualifies as an 'armed attack' triggering the right to self-defence under Article 51.

C) The provision of arms and logistical support to paramilitary groups by a foreign state unconditionally constitutes an armed attack, entitling the victim state to respond with full military force under Article 51.

D) The conditions of necessity and proportionality are expressly set out in Article 51 of the UN Charter and automatically apply whenever a state invokes the right of self-defence.